Tentative Rulings for August 28, 2026
Department 6

To request oral argument, you must notify Judicial Secretary Molly Frabotta at (760) 904-5722 and inform all other counsel no later than 4:30 p.m.

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at Riverside Superior Court-Tentative Rulings.. If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 6 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at Riverside Superior Court-Remote Appearances

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: 161 830 3643

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2302008	QUINTERO vs WON	Motion to Compel and Motion to Deem Matters Admitted

Tentative Ruling:

These motions are unopposed. Accordingly, both are granted in all respects. Moving party to give notice of ruling within 10 days of this ruling. The Court has signed the proposed order re: form interrogatories. However, the Court has not received a proposed order for the motion to deem matters admitted. Moving party to submit an order for Court's signature.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2304264	ANDERSON vs WRIGHT	MOTION TO SET ASIDE

Tentative Ruling:

This is a partition action. Plaintiff William Anderson filed the operative Complaint on August 8, 2023 seeking partition of the real property located at 1365 Melstone Street, Beaumont, California. (Complaint ¶2.)

On August 25, 2025, the Court dismissed the entire action with prejudice. The matter was dismissed because on April 25, 2025, the date the matter was set for trial, the parties informed the court they had reached an unconditional settlement. The court did not receive a declaration stating good cause to not dismiss the matter (Local Rule 3116), so it was dismissed.

Plaintiff then moved to set aside the dismissal, reinstate the Complaint, and enter judgment in the sum of $50,000 in favor of plaintiff pursuant to the parties' settlement agreement reached on April 25, 2025. The motion was made pursuant to CCP §473(b) and on the grounds that Defendant defaulted on the settlement agreement because she failed to refinance or remove Plaintiff's name from the mortgage loan as agreed to. On December 12, 2025, the Court granted the motion and set aside the dismissal. The Court set an OSC re: why the case should not be dismissed after settlement to be heard on February 26, 2026. (12/12/25 Minute Order.) The OSC was later continued to April 20, 2026. (2/25/26 Minute Order.)

Defendant Wright then brought a motion to "strik[e] and vacat[e] all filings made after the dismissal of this action on August 25, 2025, including but not limited to the September 25, 2025 filings and purported judgment in the amount of $50,000" on the following grounds: (1) the action was dismissed after Plaintiff failed to comply with a Court-ordered deadline to file an Order to Show Cause arising from mediation; (2) upon dismissal, the Court lacked jurisdiction to accept further merits-based filings absent a motion or order restoring jurisdiction; (3) the post-dismissal filings are void as a matter of law; and (4) the unauthorized filings interfered with Defendant's right to notice and due process, particularly prejudicial to a self-represented litigant. Defendant claimed she did not receive notice of the September 25, 2025 filings and was deprived of an opportunity to be heard.

On April 20, 2026, the court set aside the order granting the Motion to Set Aside Dismissal under CCP §128(8). As of that date, the matter stood as dismissed with no future court dates and all future dates were vacated. The court noted Plaintiff could re-file the Motion to Set Aside and correctly serve the motion on Defendant.

Plaintiff did just that and that is the motion presently before the court. Plaintiff argues the court has the power to control its docket and make its ruling conform to law and justice by setting aside the dismissal once Defendant is properly served with notice of the motion. Plaintiff asserts his credit rating continues to be negatively impacted because Defendant has not adhered to the terms of the settlement and removed him from the mortgage. Plaintiff asks the court to set the matter for trial to address the merits of the case.

Defendant opposes the motion. Defendant argues she did not sign any written settlement agreement authorizing a $50,000 judgment and no settlement terms authorizing a $50,000 judgment were orally placed on the record before the court. As a result, Defendant argues Plaintiff has not shown the threshold basis for entry of judgment under CCP §664.6. Defendant notes she is not waiving mediation confidentiality. On August 17, 2026, Defendant provided the court with a supplemental declaration which states Plaintiff called Defendant on April 22, 2026. (Wright Decl. ¶3.) During that call, Defendant claims Plaintiff said he did not know his attorney was seeking an additional $50,000 from Wright and he had not authorized such action. (¶8.)

Analysis

Under CCP §473(b), the court has broad discretion to relieve a party "upon any terms as may be just…from a judgment, dismissal, order or other proceeding taken against him or her through his or her mistake, inadvertence, surprise or excusable neglect." CCP § 473(b) notably provides for two distinct types of relief – "discretionary" and "mandatory." (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1124.) Under the discretionary relief provision, the court has discretion to allow relief from a "judgment, dismissal, order, or other proceeding taken against" a party or his or her attorney on a showing of "mistake, inadvertence, surprise, or excusable neglect." (*Ibid*; *see also Martin Potts & Associates, Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 438.) Under the mandatory relief provision, the court must vacate any "resulting default judgment or dismissal entered" upon a showing by attorney declaration of "mistake, inadvertence, surprise, or neglect." (*Luri*, *supra*, 107 Cal.App.4th at 1124; *Martin Potts & Associates*, *supra*, 244 Cal.App.4th at 438.) Importantly, the statute requires the court to set aside dismissals – not just defaults – based upon an attorney declaration of fault. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2023), §§ 5:299-5:299.2, 5330.6-5:300.8.)

The motion does not explain any mistake, inadvertence, surprise, or excusable neglect that serves as the basis for setting aside the dismissal. The motion is supported by Attorney Onyejekwe's declaration, which briefly explains the procedural history related to this motion (¶2), asks the court to take judicial notice of the court's file for this matter

(¶3), and states: “Plaintiff has always made it clear that he wants his name off the real property. By so doing, he will be able to have closure with defendant and the current property and will be able to try to purchase a property of his own without the encumbrance of defendant’s property.” (¶3.) Finally, Attorney Onyejekwe “implore[s] this court to set aside the order of dismissal; enforce the parties’ settlement agreement and set the matter for trial.” (¶4.)

The motion is also supported by Plaintiff’s declaration. Plaintiff explains he and defendant entered into a Settlement Agreement on April 25, 2025 with the Court’s ADR Mediator. (¶2.) Plaintiff states the parties agreed Defendant would give Plaintiff $270,000 in a Cashier’s check in exchange for Plaintiff executing a notarized quitclaim deed. Defendant was then to record the deed and apply for refinancing with the mortgage lender and remove Plaintiff’s name from the loans. (¶2.) Plaintiff states he executed the quitclaim deed and received $270,000. (¶3.) Plaintiff claims Defendant has not made any effort since August 2025 to remove his name from the loan. (¶8.) Plaintiff concludes his declaration with: “Since Defendant has made no effort to refinance or remove my name from the mortgage loan to date, I implore this court to reinstate my complaint, and to set this matter for trial since it does appear that defendant will be unable to refinance any time soon.” (¶13.)

The motion is devoid of any explanation of any excuse, mistake, or other reason to support setting aside the dismissal. The court cannot simply set aside a dismissal under CCP §473(b) because Plaintiff now wishes they had not dismissed the case. Neither Plaintiff nor his counsel provide any type of mistake, excuse, surprise, or excusable neglect to warrant setting aside the dismissal.

Plaintiff’s Reply provides more information than the initial motion. Attorney Onyejekwe provides a second declaration where he states: “On August 25, 2025, the Court dismissed the action with prejudice. I mistakenly failed to prevent dismissal or to ensure before dismissal that the Court retained an effective procedure to enforce every unperformed settlement term. I accept responsibility for any mistake, inadvertence, surprise, or neglect on my part that caused or contributed to the dismissal operating against Plaintiff’s rights. Plaintiff did not direct me to abandon the refinance term or the stipulated consequence for nonperformance.” (¶¶9-10.) Attorney Onyejekwe’s declaration filed in support of the Reply shows mistake and excusable neglect that would trigger the mandatory relief provision. However, this testimony was not provided with the initial motion so Defendant has not had a chance to review it or respond. New evidence is not permitted with reply papers and is only allowed in exceptional cases. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538.) The Court has discretion to accept new evidence in reply papers so long as the opposing party is given an opportunity to respond. (*Alliant Ins. Services, Inc. v. Gaddy* (2008) 159 Cal.App.4th 1292, 1307-1308.) To the extent the court considers the evidence filed in support of the Reply, the court must first grant Defendant the opportunity to respond to the new evidence.

The motion also asks the court to enforce the parties’ settlement agreement. This would be an entirely separate motion that would have to be brought after the dismissal was set aside. Plaintiff still has recourse to enforce the settlement agreement as he can file a separate lawsuit for breach of contract. However, the court cannot enforce any purported settlement agreement in this matter when the case has been dismissed and there is no basis for setting aside that dismissal.

The Court does not consider the new evidence contained in the Reply. Motion is denied.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2404824	RIVERA vs FORD MOTOR COMPANY	MOTION FOR ATTORNEYS' FEES

Tentative Ruling:

Moving party: Plaintiff Wendy Rivera

Responding party: Defendant Ford Motor Company

This is a lemon law case. On September 23, 2022, Wendy Rivera aka Wendy Noemi Rivera-Ventura ("Plaintiff") purchased a 2022 Ford Explorer ("Subject Vehicle") which was manufactured and/or distributed by Defendant Ford Motor Company ("Defendant" or "Ford"). In connection with the purchase, Plaintiff received a Basic Warranty that included bumper-to-bumper coverage for defects in materials and workmanship for the earlier of 36 Months (3 Years) or 36000 miles, a Drivetrain/Powertrain Warranty that covered defects in materials and workmanship for the earlier of 60 Months (5 Years) or 60000, and a California Emissions Warranty that covered defects in materials and workmanship in emissions parts for the earlier of 7 years or 70,000 miles. The Subject Vehicle developed nonconformities during the warranty period. Despite sufficient repair attempts, Ford was unable to cure the defects. Ford failed to repurchase the Subject Vehicle in violation of the Song Beverly Consumer Warranties Act ("Song Beverly Act").

On August 28, 2024, Plaintiff filed the Complaint against Ford and Warren Anderson Ford. The Complaint asserts two causes of action for: (1) Violations of the Song Beverly Act--Breach of Express Warranty against GM; and (2) Negligent Repair..

Plaintiff now moves for attorney's fees in the amount of $24,765.00 and costs in the amount of $3,761.52 under the fee-shifting provision of the Song Beverly Act. Plaintiff argues that the hours were reasonable, and all duplicative hours have been removed from billing records. Plaintiff argues that staffing with several attorneys was reasonable because each attorney specializes in unique aspects of litigation. Plaintiff invites defense counsel to produce records for comparison. Plaintiff argues that the rates are reasonable based on the nature and complexity of the case and skill of counsel. Plaintiff requests a 1.5 multiplier based on contingency risk. Plaintiff argues that the costs are reasonable.

Defendant argues that the rates requested are excessive for Riverside County and should be reduced to $275 for non-partners and $350 for partners based on the Real Rate Report. Defendant argues that all hours incurred by Castillo Law must be stricken because the attorneys were not licensed in California. Defendant argues that Plaintiff should not recover fees in connection with the discovery motions because the Court already addressed the issue of sanctions. Defendant argues that the fees for the PMQ deposition should be stricken since Plaintiff knew in advance that the PMQ was not available. Defendant argues that the fees for the present Motion are excessive. Defendant argues that Plaintiff should not recover for internal communications or administrative work. Defendant argues that the case was overstaffed. Defendant argues that the enhancement is not warranted. Defendant argues that the costs are excessive and unsubstantiated.

In her Reply, Plaintiff withdraws the request for fees for Grenville Pridham. Plaintiff argues that it provided sufficient evidence to support the rates requested, and Defendant has not produced sufficient evidence that the rates are excessive. Plaintiff argues that the number of attorneys was reasonable. Plaintiff argues that the unlicensed attorney was billed as a law clerk. Plaintiff argues that each of Defendant's challenges to specific tasks lack merit. Plaintiff argues that the costs are reasonable under the Song Beverly Act, and she was not required to provide invoices with the Memorandum.

<u>Motion for Attorneys' Fees</u>:

Attorneys' fees may be awarded to a prevailing party as costs when authorized by contract, statute or law. (CCP § 1033.5(a)(10).) The Song Beverly Act provides, "[i]f the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees, based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civil Code §1794(d).) Here, on December 30, 2025, Ford served Plaintiff an Offer to Compromise pursuant to the California Code of Civil Procedure § 998 for the sum of $100,000.00, which Plaintiff accepted the same day. (Decl. of Pisciotta, ¶ 2, Ex. A.) As such, Plaintiff is the prevailing party and is entitled to reasonably incurred fees and costs.

<u>Lodestar</u>:

The lodestar method is used to calculate fees under section 1794(d). (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal. App. 4th 967, 997.) The lodestar amount is based on the time spent and reasonable hourly rate. (Id at 998.) The prevailing buyer has the burden of showing the fees incurred were allowable and reasonably necessary to the conduct of the litigation. (*Goglin, supra*, 4 Cal. App. 5th at 470.) Verified billing records constitute prima facie evidence that the fees were reasonable. (*Hadley v. Krepel* (1985) 167 Cal. App. 3d 677, 682.) Once the prevailing party has made a prima facie showing that its fee request was fair and reasonable, the burden of proof is on the opposing party to show by admissible evidence that the fees requested were unreasonable, either by the number of hours or the hourly rate or both. (*Maughan v. Google Technology* (2006) 143 Cal. App. 4th 1242, 1261.) The trial court must make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case, including the complexity of the case, procedural demands, skill exhibited, and results achieved, the amount of actual time expended and the monetary charge being made for the time expended are reasonable. (*Goglin v. BMW of North America* (2016) 4 Cal. App. 5th 463, 470.) If the time expended or monetary charge is not reasonable, the court should reduce the amount. (*Ibid*.)

Plaintiffs claim a lodestar total of $17,920.00 based on 37.6 hours.

Billing Rates:

The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The experienced trial judge is the best judge of the value of professional services rendered in his or her court and may make his or her own determination of the value of the services contrary to, or without the necessity for, expert testimony. (*Id.* at 1096.) In determining the value of the legal service, courts consider several factors, including, “the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case.” (*PLCM Group, Inc., supra,* 22 Cal. 4th at 1096.)

Plaintiff requests hourly rates ranging from $395 for a law clerk to $600. Some of these rates appear somewhat high for Riverside County. However, Defendant’s reduced rates of $275 for non-partners and $350 for partners are also significantly lower than rates typically awarded for lemon law actions. Thus, the reasonable rates are adjusted as follows, reflecting the experience and skill of counsel and contingency risk:

Name	Year licensed	Billed rate	Reduced rate	No. of hours	Total fee reduction
Kirnos	2009			NA	
Lopez	2018	$450	$425	4.6	$1,995
Lopez	2018	$400	$400	.4	$160
Cohen	2017	$515	$425	4.8	$2,040
Meagle	2019	$400	$400	6.6	$2,640
Reed	2009	$495	$495	2	$990
Cutler	2009	$550	$525	2.2	$1,155
Pridham	1985	$600	NA	NA	
Higgins	2003	$600	$575	6	$3,450
Donnelly	1995	$500	$500	4.8	$2,400
Robles	Law Clerk	$295	$200	4.4	$880
Total				35.8	$15,710

Hours Incurred:

Plaintiff claims that counsel billed 37.6 hours on this case. Counsel produced extensive billing records showing the time for each tasks. Generally, billing records are given a presumption of credibility. (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396.) “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. Failure to raise specific challenges in the trial court forfeits the claim on appeal." (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564.)

Defendant argues that the fee is excessive because the case was overstaffed. "[I]t is appropriate for a trial court to reduce a fee award based on its reasonable determination that a routine, noncomplex case was overstaffed to a degree that significant inefficiencies and inflated fees resulted." (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 39.) To remedy this excessive billing, the court may cut certain attorneys from the lodestar analysis entirely. (Id at 40.) The court must determine whether the staffing choices resulted in excessive or duplicative billing regardless of the number of attorneys. (*Mo. Rahman v. FCA Us LLC* (C.D. Cal., 2022) 594 F. Supp. 3d 1199, 1205-1206.) In this case, although ten attorneys worked on the case, there does not appear to be any significant or obvious stacking or duplicative work. Moreover, Plaintiff withdraws 1.8 hours ($1,080) incurred by Attorney Pridham.

Defendant argues that fees requested in connection with Plaintiff's discovery motions should be stricken because the Court already awarded fees for the Motion to Compel Further Responses to Requests for Production and denied fees in connection with the Motion to Compel Further Responses to Special Interrogatories. Awarding additional fees for the discovery motions would undermine the Court's prior determination as to the reasonable amount of sanctions and justification for the motions. Based on the adjusted rates above, **the lodestar is reduced by $3,365.**

Defendant argues that fees incurred in taking the PMQ deposition should be stricken because Plaintiff was informed in advance that the PMQ was unavailable. However, the non-appearance fees are reasonable.

Defendant argues that the 4.90 hours for the present fee motion, including 3 hours for anticipated events (i.e. reviewing opposition and drafting reply) are excessive. The Opposition includes several specific challenges that require response. Moreover, because Defendant demanded additional evidence regarding the costs and expenses, new evidence was submitted with the Reply which requires a continuance as explained below. Therefore, the future hours are reasonable.

Based on the above, the lodestar total is **reduced to $12,345.00.**

<u>Multiplier</u>:

Plaintiff requests 1.5 multiplier. The court then has the power and the duty to enhance, or to reduce, the lodestar through the use of multipliers, by taking into consideration factors such as the novelty and complexity of the issues, the skill and expertise of counsel, the extent that the litigation precluded other employment and the contingent nature (or risk) of nonrecovery." (*Robbins v. Alibrandi* (2005) 127 Cal.App.4th 438, 448.) A contingent fee is generally higher than a fee for the same legal services paid as they are performed to compensate for the loan of those services and risk of loss. (*Ketchum v. Moses* (2001) 24 Cal. 4th 1122, 1132.) "However, although taking a case on a contingent fee basis may support an award of a multiplier, it does not compel, it." (*Save*

Our Uniquely Rural Community Environment v. County of San Bernardino (2015) 235 Cal. App. 4th 1179, 1188.)

The request for the multiplier is based on the contingency risk and complexity of the case and skill of counsel. However, the contingency risk was reduced due to the fee-shifting provision of the Song Beverly Act. Moreover, the contingency risk, as well as the skill and experience of counsel, was accounted for in the billing rates. Thus, adding an enhancement based on the same factors constitutes double counting. (*Ketchum v. Moses* (2000) 24 Cal. 4th 1122, 1142.) The request for multiplier is denied.

<u>Litigation Costs and Expenses</u>:

"Except as otherwise provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (CCP § 1032(b).) Generally, CCP § 1033.5 enumerates categories of costs that are allowable and items that are not allowable. The Song Beverly Act allows a prevailing buyer to recover costs and expenses which are reasonably incurred in connection with the commencement and prosecution of the action. (Civil Code §1794(d).) The additional term "expenses" was included in this section to cover items that would not otherwise be included in the detailed statutory definition of "costs" under CCP § 1033.5. (*Jensen v. BMW of North America* (1995) 35 Cal.App.4th 112, 137-138.)

"If the items on a verified cost bill appear proper charges, they are prima facie evidence that the costs, expenses and services therein listed were necessarily incurred. Where the items are properly objected to, they are put in issue, and the burden of proof is upon the party claiming them as costs." (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 816.) The prevailing buyer bears the burden of showing that costs or expenses were (1) reasonably necessary to the conduct of litigation and (2) reasonable in amount. (*Ibid*.)

On April 21, 2026, Plaintiff filed the Memorandum of Costs seeking a total of $3,761.52 in costs. Defendant argues that the costs are excessive and unsubstantiated but does not object to any specific items. Nor has Defendant filed a motion to tax costs. Defendant argues that it cannot determine which costs are reasonable without substantiating evidence. While Plaintiff was not required to provide such evidence until the specific items are challenged, Plaintiff produced additional records in support of the Reply. The Court continued the hearing to allow Defendant to respond to the new evidence and challenge any of the listed costs as unreasonable. On August 21, 2026, Defendant filed a supplemental declaration indicating that it does not oppose the requested costs. As such, **Plaintiff is awarded the full amount of $3,761.52.**

Fees and Cost ordered payable within 30 days of this order.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600447	ABITO vs BRUNK'S STEAKHOUSE INC	MOTION FOR SANCTIONS

Tentative Ruling:

Moving party: Plaintiff Ryan Abito ("Plaintiff")

Responding party: Defendant Brunk's Steakhouse ("Defendant")

Plaintiff Ryan Abito began his employment with Brunk's Steakhouse, Inc. as a salaried General Manager on or about July 8, 2024, at the restaurant located at 4410 California Avenue, Norco, California. (Abito Decl., ¶ 2.) Plaintiff filed the Complaint in this action on January 15, 2026, asserting nineteen causes of action arising from that employment. (Burton Decl., ¶ 2.) As of the date of this motion, Defendant has not filed an Answer or any other responsive pleading to the Complaint. (Burton Decl., ¶ 3.)

Motion to Compel Arbitration. . On April 1, 2026, Defendant filed a Notice of Motion and Motion to Compel Arbitration and Stay Proceedings (which was denied on June 26, 2026.). On April 2, 2026, Defendant filed the accompanying Memorandum of Points and Authorities. No supporting declaration was attached to or filed with either document. The Declaration of Nicole Brunk submitted in support of the motion was not executed until April 7, 2026, five days after the Memorandum was filed and six days after the Notice of Motion. (Burton Decl., ¶ 4.) Prior to filing, Defendant's counsel did not contact Plaintiff's counsel to meet and confer, request a conference, exchange correspondence, or otherwise communicate regarding the motion, the existence of an alleged arbitration agreement, or Defendant's intent to seek to compel arbitration. The first communication received from Defendant's counsel was an email sent on April 3, 2026, the day after the motion was filed. (Burton Decl., ¶ 5.)

Facially defective agreement. . Defendant's Memorandum represents to this Court that "Plaintiff executed a document titled 'Brunk's Steakhouse Voluntary Arbitration Agreement' . . . on or about July 2025." Plaintiff began his employment with Brunk's Steakhouse on July 8, 2024, a full year before the date the motion asserts the agreement was signed. (Burton Decl., ¶ 6.) The "Employee Name" and "Employee Signature" fields on the purported agreement read "ABIN . MY." That is not Plaintiff's signature, that is not his name as he writes it, prints it, or abbreviates it, and he did not sign that document. (Abito Decl., ¶ 5.) The Employee Handbook Acknowledgment's "Employee Name (Print)" field reads "ABITURM," which is likewise not Plaintiff's handwriting or any form in which he writes his name. (Abito Decl., ¶ 6.) The date appearing on the signature line of the purported agreement reads "7/9/15," and the Handbook Acknowledgment reads "7/28/15" — approximately nine years before Plaintiff began his employment with Defendant in July 2024. Plaintiff did not sign any document in 2015 in connection with Brunk's Steakhouse and had no relationship with the company until July 2024. (Abito Decl., ¶ 7.)

This motion concerns the motion to compel arbitration filed by Defendant Brunk's Steakhouse, Inc. that rests on a document whose authenticity Plaintiff has categorically denied under penalty of perjury, whose facial contents are self-contradictory, whose internal dates are nine years removed from Plaintiff's employment, and whose "signature" does not correspond to Plaintiff's name in any recognizable form.

Plaintiff now moves for an order imposing monetary sanctions against Defendant and its counsel of record pursuant to CCP §§ 128.7 and 128.5. Plaintiff requests sanctions in the total amount of $23,575.00, representing 41.0 hours of attorney time at $575.00 per hour, payable to Laurel Employment Law, APC, 808 Wilshire Boulevard, Suite 200, Santa Monica, California 90401, within thirty (30) days of the Order. This motion is made separately from any other motion or request, as required by CCP §§ 128.7, subdivision (c)(1) and 128.5, subdivision (f)(1)(A).

Plaintiff contends that: (1) CCP § 128.7is satisfied as the motion to compel arbitration was filed without adequate factual investigation; (2) the CCP § 128.7 safe harbor requirement is satisfied; (3) CCP § 128.5 is independently satisfied (a pattern of bad-faith litigation tactics); (4) the requested sanctions are reasonable and proportionate.

In Opposition, Defendant contends that (1) Plaintiff did not satisfy CCP § 128.7's mandatory safe harbor; (2) CCP § 128.5 does not rescue the request; (3) the formation ruling does not establish knowing fabrication or an unreasonable inquiry; (4) the chronology located physical document, and Jacobs matter support good faith; (5) Plaintiff's fee request is unallocated and causally deficient.

In Reply, Plaintiff contends that (1) CCP § 128.5 is the primary basis for sanctions because Defendant's completed tactics could not be withdrawn or appropriately corrected; (2) Defendant's safe-harbor authorities involve withdrawable papers, not completed tactics; (3) Defendant's new "physical document" makes the record worse; (4) the chronology shows haste, concealment, and procedural pressure, not good-faith investigation; (5) Defendant still has not competent evidence that Abito signed the agreement; (6) Defendant's "no knowing, fabrication" argument misstates the sanctions standard; (7) the fees are properly tied to the misconduct.

Analysis

I. Standard

A. Deny Motion under CCP § 128.7 for lack of compliance with safe-harbor provision

In cases filed after 1994, an attorney or unrepresented party who presents a pleading, motion or similar paper to the court makes an implied "certification" as to its legal and factual merit, and is subject to sanctions for violation of this certification. (CCP §128.7; see *Murphy v. Yale Materials Handling Corp.* (1997) 54 Cal.App.4th 619, 623.) Thus, the attorney presenting the paper certifies that: 1) the pleading/motion was not brought for an improper purpose to harass or cause delay and increase costs of litigation; 2) the claims are warranted under existing law or a nonfrivolous argument for the extension of existing law; and 3) the allegations have evidentiary support. (CCP §128.7(b).)A motion for sanctions under §128.7 cannot be filed until 21 days after it has been served (the so-called "safe harbor" waiting period). During this time, the party being served has the opportunity to correct the violation, and if it does so, the sanctions motion cannot be filed or pursued. (CCP §128.7(c)(1).) The safe harbor provision is an absolute prerequisite and substantial compliance is not sufficient. (*Cromwell v. Cummings* (1998) 65 Cal.App.4th Supp. 10, 15.)

1. Plaintiff did not comply with Safe Harbor Provision in CCP § 128.7

The conduct that makes up the aspect of the motion under CCP § 128.7 is: (1) the signature on the Agreement is not Plaintiff's; (2) the Agreement's date predates Plaintiff's employment by nine years; (3) no original agreement has ever been produced; and (4) no supporting declaration accompanied the motion to compel arbitration at the time of filing. (See Motion, page 8, line 8, through page 9, line 12.)

As a threshold matter, Plaintiff contends that the safe-harbor provision has been complied with. Plaintiff explains that the safe harbor letter was sent by email to Ms. Lucente (defense counsel) at mlucente@lucentelawoffice.com on April 6, 2026, formally identifying the specific deficiencies described above and constituting formal notice pursuant to Code of Civil Procedure section 128.7, subdivision (c)(1). (Burton Decl., ¶ 11, Ex. 1.) More than twenty-one days elapsed since service without withdrawal or cure. (Burton Decl., ¶ 12.)

Per Plaintiff, this motion is brought separately from any other motion or request, describes the specific sanctionable conduct, and is filed after the safe harbor period has expired. All procedural requirements of section 128.7, subdivision (c)(1) are satisfied. This motion is brought as a separately noticed and separately filed motion, not embedded in an opposition, directly curing the procedural objection Defendant raised in its reply brief. (See Def.'s Reply to underlying arbitration motion, p. 10.)

In the Opposition, Defendant contends that Plaintiff did not satisfy CCP § 128.7's mandatory safe harbor. According to Defendant, Plaintiff's April 6 letter was not service of the motion. It said Plaintiff would later "initiate" the statutory process, expressly including future "service of a sanctions motion." It also demanded documents within four days, not withdrawal or correction within 21 days. The letter predated the principal anomalies and later conduct challenged in the motion. The June 10 proofs of service show that Plaintiff served the actual motion on the same date it was filed or presented. According to Defendandt, Plaintiff's party-initiated section 128.7 request is therefore procedurally barred.

In response, Plaintiff contends that the authorities cited by Defendant do not address completed, non-withdrawable AAA communications or unilateral arbitration conduct. However, Plaintiff does not appear to address the CCP § 128.7 safe harbor period as to prior conduct that cannot be withdrawn or corrected as appears to be the case here.

A CCP § 128.7 motion involves a two-step process. The moving party first *serves* the sanctions motion on the offending party *without filing it*. The opposing party then has *21 days* to withdraw the improper pleading and avoid sanctions (the so-called "safe harbor" waiting period). At the end of the waiting period, if the pleading is not withdrawn, the moving party may then file the motion. (CCP § 128.7(c)(1); *Primo Hospitality Group,* *Inc. v. Haney* (2019) 37 CA5th 165, 173-174, *Martorana v. Marlin & Saltzman* (2009) 175 CA4th 685, 698-699; see *Broadcast Music, Inc. v. Structured Asset Sales, LLC* (2022) 75 CA5th 596, 605-606, —sanctions motion improperly filed where issue (objectional document) was resolved during safe harbor period.)

Here, the April 6, 2026 ,email from Plaintiff's counsel to defense counsel does not comply with the safe-harbor provision of CCP § 128.7. The letter itself asks for the arbitration agreement that forms the basis of the underlying motion to compel arbitration, and goes on to state, in part:

> Please be advised: if the agreement you produce does not align with what your motion represents — or if no authenticated, executed agreement exists — this filing will lack evidentiary support for its central factual contention within the meaning of Code of Civil Procedure § 128.7(b)(3). **In that event, we will have no choice but to initiate the § 128.7 safe harbor process, including service of a sanctions motion, without further notice.**

(Emphasis added.)

The safe-harbor period was not complied with, because the motion was not served on April 6, 2026 to start the 21-day window.

In the Reply, Plaintiff states that **CCP § 128.5 is the primary basis for sanctions** because Defendant's completed tactics that could not be withdrawn or appropriately corrected and that is the situation addressed by CCP § 128.5.

B. CCP § 128.5

CCP § 128.5 allows a court to order a party or counsel, or both to pay the reasonable expenses, including attorney's fees, incurred by the other party as a result of bad-faith actions or tactics that are frivolous or solely intended to cause unnecessary delay. Section 128.5(a) requires either: (1) bad faith actions or tactics or (2) a frivolous action. Actions or tactics includes "the making or opposing of motions or the filing and service of a complaint…." (CCP §128.5(b)(1).) Frivolous is "totally and completely without merit or for the sole purpose of harassing an opposing party." (CCP §128.5(b)(2).)

Plaintiff contends that the record reflects a pattern of conduct that is bad faith within the meaning of section 128.5. "An evil motive is not required; subjective bad faith may be inferred from the prosecution of a frivolous action." (*Campbell v. Cal-Gard Surety Services, Inc.* (1998) 62 Cal.App.4th 563, 574.) Plaintiff specifies the five following acts that make up this aspect of the motion:

Act 1 — Deliberate exclusion of opposing counsel from AAA communications. On April 10, 2026, Ms. Lucente communicated directly with AAA regarding the Abito matter while deliberately omitting Plaintiff's counsel, despite being fully aware that counsel of record represented Mr. Abito. Erin Cole characterized the omission as "inappropriate" in writing; no response was offered. (Burton Decl., ¶ 13, Ex. 2.)

Act 2 — Unilateral initiation of AAA arbitration without a court order. Defendant initiated AAA Case No. 01-26-0001-7410 against Plaintiff before this Court ruled on the pending Motion to Compel Arbitration, and over Plaintiff's counsel's express written objection. Defendant also failed to disclose to the AAA the pendency of this Court's proceedings when filing. (Burton Decl., ¶ 14, Ex. 3.)

Act 3 — Unauthorized attempt to stay the entire civil action. On April 13, 2026, Ms. Lucente proposed a complete stay of this civil action pursuant to Code of Civil Procedure section 1281.4, in the absence of any order compelling arbitration or staying the action. (Burton Decl., ¶ 15, Ex. 3.)

Act 4 — Filing of a frivolous ex parte application, denied in its entirety. Defendant sought emergency judicial intervention to advance the arbitration hearing and stay all discovery, while refusing Plaintiff's offer to hold discovery in abeyance conditioned on full withdrawal of the ex parte. The Court denied the application in its entirety on April 17, 2026. (Burton Decl., ¶¶ 16–18.)

Act 5 — Requesting a discovery extension within thirty minutes of the emergency denial. Approximately thirty minutes after the Court denied the ex parte application, Ms. Lucente requested a two-week extension on the same discovery she had just characterized to the Court as a matter of emergency. Plaintiff's counsel denied the request the same day. (Burton Decl., ¶ 19, Ex. 4.)

As noted by Plaintiff, none of this conduct was capable of being "withdrawn or appropriately corrected" and therefore no separate safe harbor was required for this category of conduct. However, to the extent Plaintiff relies on the April 6, 2026 email letter discussed in connection with the CCP § 128.7 sanctions request, it does not satisfy the safe-harbor provision for CCP § 128.5 either, to the extent one is necessary.

Per *Computer Prepared Accounts, Inc. v. Katz* (1991) 235 Cal.App.3d 428, 438–439, "submitting forged documents to a trial court is without a doubt . . . sufficient indication of 'bad-faith actions or tactics that are frivolous or solely intended to cause unnecessary delay.'" Here, Defendant not only filed a motion premised on a document whose authenticity is categorically denied and internally self-contradictory, but followed that filing with the series of tactics described above.

In the Opposition, Defendant contends that attorney Brunks has now located a physical document, however, the new document does not cure anything and makes things more complicated. Here, the color copy attached as Exhibit A in the Opposition appears to show "MBIN . M" and a date of "7/19/15." That differs from the version this Court already analyzed, where the Court observed that the signature looked like "ABIN . MY" and was dated July 9, 2015. Defendant now asks the Court to accept a newly located "physical document" with a different apparent non-name and a different apparent date, authenticated only by counsel, who is not a custodian, not a percipient witness, and not a handwriting expert.

In addition, the Opposition asks the Court to view each event in isolation. However, as noted by Plaintiff the events should be viewed as a chronology.

First, Defendant rushed the Motion to Compel Arbitration onto the docket before it had competent evidence to support it. Ms. Lucente admits the Brunk declaration was not signed until April 8, 2026, and was filed April 9, 2026, after the Motion to Compel Arbitration had already been filed. Defendant says the motion was filed because its responsive pleading deadline was approaching. That is a deadline explanation, not an evidentiary foundation.

Second, the supporting document was not merely weak. This Court found the document itself pointed toward fabrication. The Court found the "logical inference" from the impossible date, unrecognizable signatures, and CEO declaration offering no fact about when or how signing occurred was that the document was fabricated. That finding matters. Defendant's problem is not that it lost a close arbitration motion. Defendant tried to force Plaintiff out of court on a document the Court found logically indicative of fabrication.

Third, Defendant then used that same disputed document to create procedural pressure outside this Court. Defendant admits it initiated the AAA proceeding on or about April 10. Defendant did so before any order compelling arbitration and over Plaintiff's objection. Defendant also communicated with AAA about the Abito matter while omitting Plaintiff's counsel. Those acts were not harmless administrative steps. They were an attempt to make arbitration a practical reality before this Court determined whether any agreement existed.

Fourth, Defendant's later production makes the record worse, not better. The "physical" version now attached to the Lucente Declaration appears to show "MBIN . M" and "7/19/15." The version the Court previously analyzed appeared to show "ABIN . MY" and "July 9, 2015." A newly located version of the supposed agreement with a different apparent non-name and date does not corroborate Defendant's position. It reinforces the reason sanctions are needed.

The "completed conduct" discussed by Plaintiff matters here because Defendant could not withdraw the harm caused by rushing a baseless arbitration record, initiating AAA, omitting counsel, and creating ex parte pressure after those acts occurred. Section 128.5 exists for precisely this type of bad-faith litigation tactic.

Again, submitting forged documents to a trial court is sufficient to support section 128.5 sanctions where the conduct constitutes "bad-faith actions or tactics that are frivolous or solely intended to cause unnecessary delay." (*Computer Prepared Accounts, Inc. v. Katz* (1991) 235 Cal.App.3d 428, 438.) The same principle applies here. Plaintiff need not prove who fabricated the document to show that Defendant's use of a facially suspect document, followed by rushed and concealed arbitral tactics, warrants deterrence.

Also, Defendant repeatedly argues that the Court did not identify who created or altered the document and did not find that counsel knew it was false before filing. But Plaintiff's motion is not limited to intentional fabrication. It is based on objectively unreasonable filing and advocacy, plus bad-faith litigation tactics. The Court's prior ruling matters. The Court found fabrication was the logical inference from the anomalies in Defendant's proof. Defendant then continued litigating around that document with no percipient signing witness, no competent authentication of the signature, and no explanation for the impossible date.

Plaintiff is right: Section 128.5 also permits the Court to infer bad faith from conduct. Defendant filed first, supported later, initiated AAA before an order, omitted counsel from arbitral communications, pressed an ex parte “emergency,” and then requested an extension immediately after losing. That sequence supports an inference of bad faith.

C. Impose sanctions under CCP § 128.5 in the amount of $6,325

The Court will limit sanctions to the conduct subject to CCP § 128.5, above. In other words, an award limited to the fees caused by that conduct and the fees incurred presenting this sanctions motion. The breakdown is found in the Declaration of Brendan J. Burton, page 9, lime 12-25. Starting with the entry at line 12 for final review, revision, and filing preparation (Opposition) for $862.50 plus the additional attorney time expended in connection with preparing and filing this motion in the amount of $5,462.50, for a **total of $6,325, the amount requested for the CCP § 128.5 motion (with an hourly rate for counsel of $575.) Sanctions are ordered payable within 30 days of this order.**

II. Evidentiary Objections

Sustain Plaintiff’s objections to the opposing Declaration of Marcella Lucente on grounds stated.